

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.181	0.139	0.019	0.200	0.200
Trial Fee-Shifting	0.165	0.134	0.023	0.200	0.176
Complete Fee-Shifting	0.188	0.133	0.060	0.215	0.238

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.168	0.134	0.008	0.202	0.157
Trial Fee-Shifting	0.159	0.140	0.010	0.207	0.146
Complete Fee-Shifting	0.209	0.110	0.040	0.226	0.191